

25AVCV00102 25AVCV00102

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-11

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Case Number: 25AVCV00102 Hearing Date: August 11, 2026 Dept: A14

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES
– NORTH DISTRICT

TREVIN ANDREA HART,

Plaintiff,

v.

JAY ALAN WALSMAS, an individual;
WALSMAS OIL COMPANY, INC., a California corporation; and DOES 1 through 50,
inclusive,

Defendants.

Case

Number 25AVCV00102

[TENTATIVE]

STATEMENT OF
DECISION

Date

of Hearing: August 11, 2026

Dept. A-14

Judge William H.
Forman

I.

Background

This is a personal injury action arising from a motor vehicle collision. Third party Amya Hart (Hart) presently moves the Court for an order substituting her as successor in interest in place of Plaintiff Trevin Andrea Hart (Plaintiff).

On January 27, 2025, Plaintiff filed his complaint against Defendants Jay Alan Walsma (Walsma) and Walsma Oil Company, Inc. (WOC) (together Defendants), asserting a cause of action for personal injury and property damage arising from a motor vehicle collision. Specifically, on November 28, 2023, Plaintiff alleged that his vehicle was struck by Walsma when Walsma made a left turn into Plaintiff's path of travel and the two vehicles collided, resulting in severe bodily injuries to Plaintiff. (Hulse Decl., ¶ 2.)

On April 2, 2025, Defendants jointly filed an answer to the complaint.

On February 28, 2026, Plaintiff passed away due to causes unrelated to the subject accident. (Motion, p. 4:10-11.)

On April 30, 2026, Hart filed the present motion to be substituted in Plaintiff's place as his successor in interest.

The motion is unopposed.

II.

Legal

Standard

Standard for Substitution of Successor in Interest – A cause of action for a person is not lost by reason of the person's death, but survives subject to the applicable limitations period except as otherwise provided by statute. (Code Civ. Proc., § 377.20, subd. (a).)

“A pending action or proceeding does not abate by the death of a party if the cause of action survives,” and a surviving cause of action passes to the decedent's successor in interest. (Code Civ. Proc., §§ 377.21, 377.30.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc., § 377.31.)

A certified copy of the decedent's death certificate must also be attached to the affidavit or declaration. (Id., § 377.32(c).)

Code of Civil Procedure section 377.32 provides that a person who seeks to commence such an action as the decedent's successor in interest must file an affidavit or declaration providing the following:

1.

The decedent's name;

2.

The date and place of the decedent's death;

3.

“No proceeding is now pending in California for administration of the decedent's estate”;

4.

If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest;

5.

Either of the

following, as appropriate, with facts in support thereof: 2

a.

“The affiant or

declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding”, or

b.

“The affiant or

declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding”;

6.

“No other person

has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding”;

7.

“The affiant or

declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.” 2

(Code Civ. Proc., § 377.32(a).) 2

“Decedent's successor in interest' means the

beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.” 2 (Code Civ. Proc., § 377.11.) 2

III.

Discussion

Application – Hart

moves for an order substituting her as successor in interest in place of

Plaintiff pursuant to California Code of Civil Procedure section 377.31 on the grounds that Plaintiff passed away on February 28, 2026. (Motion, p. 1:26-2:4.)

The Court has examined the filing and finds that Hart has submitted a declaration that sets forth most of the required affirmations under Code of Civil Procedure section 377.32, subdivision (a). However, Hart has provided no facts in support of her status as successor in interest, and no copy of Plaintiff's death certificate has been attached to the declaration as required. Thus, Hart's motion does not comply with Section 377.32. However, Plaintiff's counsel previously provided the Court with a copy of Plaintiff's death certificate and stated that Hart is Plaintiff's daughter in the stipulation to continue the trial, filed on April 28 and granted as Order on April 29, 2026.

Therefore, in the absence of any opposition to the present motion and in the interests of moving the case forward, the Court GRANTS Hart's motion as it is in substantial compliance with Section 377.32 and all requisite information has been provided to the Court.

IV.

Conclusion

Amya Hart's Motion to Substitute Successor in Interest is
GRANTED.